

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

XYRA GARCIA,

Petitioner

VS.

NIKKO DESHAWN COLEMAN,

Respondent

) Case Number: FPT-25-378631

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Xyra Garcia (Mother) and Nikko Deshawn Coleman (Father) share one minor child, Rae'Lynn (DOB 5/8/2020, age 6).
- 2) On 5/12/2025, Mother filed a request seeking sole legal and sole physical custody and an order requiring Father to undergo drug testing and take an anger management class. She stated that Father had not seen Rae'Lynn due to his incarceration and that in April 2025, he refused to return Rae'Lynn to her care and had his family member pull a gun on Mother during a custodial exchange.
- 3) On 8/21/2025, Father filed a response stating he and his family cared for Rae'Lynn for the first year and a half of her life. He stated he was incarcerated from July 2023 to January 2025 but was told he could not see Rae'Lynn after he was released. He stated he would be able to provide Rae'Lynn with a good home.

- 1 4) At an 8/28/25 hearing, the Court awarded sole legal custody to Mother and joint physical custody
2 to the parties. Pursuant to the parties' agreement, the Court ordered that Father shall have
3 parenting time every weekend except the second weekend of the month and a phone call with
4 Rae'Lynn at 6:30pm every Tuesday and Thursday.
- 5 5) At a 12/4/2025 review hearing, the Court maintained sole legal custody to Mother and modified
6 Father's parenting time schedule so that Father's current parenting time is as follows: (a) Tuesday
7 school pickup at 5:30pm (or 4pm at the Concord Police Station if no school that day) until school
8 drop off on Wednesday morning (or 10am at the Concord Police Station if no school that day);
9 (b) Every weekend except the second weekend of every month, from Friday at 6:30pm at the
10 Concord Police Station to Sunday at 3:30pm at the Richmond Police Station; and (c) a phone call
11 with Raelynn every Thursday at 6:30pm.
- 12 6) On for hearing is Father's request filed 7/1/2026 in which he seeks joint legal custody with
13 parenting time from Thursday after school until Sunday at 6:30pm every weekend except the
14 second weekend. For the second weekend, he requests parenting time from Thursday after school
15 until Friday before school. He seeks joint legal custody so that he can fully participate in
16 decisions regarding Raelynn's school and health. He raises several concerns; he states, for
17 example, that Raelynn wears clothes that do not fit her well, that she is frequently ill, and that she
18 has excessive school absences. He attaches Raelynn's school attendance records for the period
19 ending 3/27/2026 that show 20 absences (2 of them unexcused) and 3 tardies in 133 days of
20 enrollment.
- 21 7) Mother filed a response in which she asks to retain sole legal custody and for Father to have
22 parenting time every other Friday after school until Saturday at 4:30pm. She states that Father
23 "frequently cancels his Tuesday parenting time at the last minute or fails to exercise it altogether"
24 and has failed to pick up Rae'Lynn from school on multiple occasions. Mother states this has
25 caused her to lose 3 jobs from having to rearrange her work schedule and to incur childcare costs,
26 which she states is especially problematic because she is the one who financially supports
27 Rae'Lynn. Mother states that Father also fails to help Rae'Lynn with her weekend homework and
28 that having her return earlier to Mother's care will better ensure the homework is completed.
29 Mother denies Father's allegations regarding Rae'Lynn's clothes, education, and health and

1 explains that Rae'Lynn's absences were due to documented illness. Mother also expresses
2 concern about her safety. She states that at Rae'Lynn's graduation on 6/8/2026, Father's family
3 members attempted to physically assault her in front of Rae'Lynn and Father did not intervene.
4 She states that on 7/8/2026, Father failed to return Rae'Lynn to Mother and that despite a police
5 civil stand-by, he did not comply with the order and withheld Rae'Lynn for 3 days.

6 **B. Findings and Orders**

- 7 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
8 Custody Jurisdiction and Enforcement Act. The country of habitual residence of the minor child
9 is the United States.
 - 10 2) Legal Custody – The Court finds it is in Rae'Lynn's best interests to maintain sole legal custody
11 to Mother. Father shall be entitled to Rae'Lynn's medical and school records and shall be listed
12 as an emergency contact for Rae'Lynn for her school.
 - 13 3) Physical Custody – Commencing 9/18/2026, Father shall have parenting time on alternating
14 weekends, from Friday after school pickup at 5:30pm (or at 4pm at the Concord Police Station if
15 no school that day) to Monday morning school drop off (or at 10am at the Richmond Police
16 Station if no school). If Father is unable to exercise his parenting time, he shall notify Mother
 - 17 4) The parties shall ensure that Rae'Lynn attends school regularly and on time during their custodial
18 days and shall ensure that Rae'Lynn completes her school assignments and homework during
19 their custodial days.
 - 20 5) A violation of Court orders may subject the party in violation to civil or criminal penalties, or
21 both. Any failure to comply with these Court orders may result in a reduction of that party's
22 parenting time.
 - 23 6) The Court will prepare the Findings and Order After Hearing.
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